MUNYARADZI MUTINZI
and
BLESSING SHUMBA
versus
THE STATE

HIGH COURT OF ZIMBABWE
MUREMBA J
HARARE; 4 November 2025

Bail pending trial

V.E. Ndlovu, for the applicants
D.H. Chesa, for the respondent

MUREMBA J:

Introduction

1. On 4 November 2025, this court dismissed the applicants' application for bail pending trial. The applicants requested written reasons for the decision, which are set out below.

2. The applicants sought release on bail subject to the following conditions: a) Deposit of US$100.00 with the Clerk of Court, Gwanda Magistrates Court. b) Residence at House No. 72/2218 Mpopoma, Bulawayo, until finalization of the matter. c) Reporting at Western Commonage Police Station once every fortnight on Fridays between 6 a.m. and 6 p.m. until the matter is finalized. d) Non-interference with State witnesses until the matter is finalized.

Background Facts

3. The applicants are charged with murder in terms of section 47(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]. According to the allegations on the Form 242, on 29 April 2025 at approximately 15:30 hours, the deceased who was the leader of a notorious group of machete-wielding artisanal miners known as *Magrigamba* was at Jumbo Mine, Mazowe. He instructed the person who later

became the informant of the murder case to gather his group members at Chitepo Village, intending to confront the rival group of the applicants. Prior to this, the deceased had expressed his intention to drive the applicants' group out of Jumbo Mine, accusing them of involvement in murders and robberies in Mazowe. Unbeknown to the deceased, his plan had already reached the applicants. At Chitepo Village, the applicants, together with their accomplice Takudzwa Zhou, waylaid and attacked the deceased and his group at a hammer mill. The deceased was manhandled and stabbed twice in the back and once under the left armpit with a knife, resulting in his death. The applicants fled the scene and were not seen again in the Mazowe area.

4. The investigating officer, in his affidavit, stated that the attack occurred in broad daylight in the presence of eyewitnesses who positively identified the accused. The applicants and the witnesses were well acquainted prior to the offence, having lived in the same locality. The applicants were arrested on 10 October 2025, nearly six months later, in Phakama, Gwanda, approximately 670 kilometres from Mazowe, where they had relocated. The investigating officer said Gwanda itself lies about 500 kilometres from Gokwe, their home area. Notably, the first applicant had moved with his family. Both applicants are artisanal miners who lead a nomadic life in search of minerals, a fact underscored by their relocation to a mine in Gwanda soon after the commission of the offence in Mazowe. Their arrest in Gwanda was effected by Detective Constable Chakanyuka of the CID, assisted by artisanal miners.

Submissions Before the Court

5. The applicants subsequently filed their bail application before this court on 31 October 2025. The applicants' counsel submitted that the applicants were suitable candidates for bail and that their release would not prejudice the interests of justice. It was submitted on behalf of the first applicant that the deceased and his gang of machete-wielding members attacked Jumbo Mine, where he was employed. It was contended that the Form 242 lacked clarity regarding the events of that day. It was submitted that out of fear for his life, the first applicant fled the mine during the gang's attack and was therefore unaware of what transpired thereafter. It was submitted that the manner in which he was identified as a suspect was unclear and

mistaken, insisting that he had no involvement in the death of the deceased since he had fled for his safety.

6. Mr *Ndlovu* further submitted that the first applicant relocated to Gwanda in search of employment opportunities. He submitted that the mine in Mazowe where the applicant had been working was frequently attacked, leaving him in constant fear for his life. He moved about a month after the death of the deceased, noting that assaults at the mine continued as rival gangs sought control. He therefore decided to relocate to Gwanda, believing it to be a safer environment.

7. It was submitted on behalf of the second applicant that his case was one of mistaken identity. It was asserted that at the time of the alleged offence he was working at Primrose Mine in Kwekwe and was never in Mazowe. He was said to have raised an *alibi* from the outset, providing evidence of his work attendance to the police. It was explained that he later resigned from his job in Kwekwe after being persuaded by the first applicant that Gwand was offering a better opportunity. He relocated to Gwanda to join the first applicant, only to be arrested shortly thereafter.

8. In response, Mr. *Chesa*, for the State, argued that the applicants were not suitable candidates for bail. He addressed the issue of mistaken identity, emphasizing that the applicants were well-known figures in the Mazowe community prior to the commission of the offence. He submitted that witnesses present at the crime scene positively identified them in broad daylight, making the identifications reliable. He further questioned the applicants' relocation, arguing that their move 670 kilometres away from Mazowe could not be viewed as innocent, particularly given that they had been identified at the crime scene. He submitted that the relocation was an attempt to distance themselves from the offence.

9. Mr. *Chesa* also challenged the credibility of the second applicant's *alibi*. He argued that the work logbook attached to the present application could not be accepted as reliable evidence, as it bore no indication that it originated from Primrose Mine, Kwekwe. He suggested that it might have been fabricated for the purposes of the bail application. He further noted that the affidavit lacked identifying details of the mine manager, raising doubts about its authenticity. He concluded that if the *alibi* had

genuinely been presented to the police at the time of arrest, it would have resulted in a warned and cautioned statement confirming the second applicant's absence from the crime scene. The absence of such a statement, he argued, undermined the credibility of the *alibi* evidence.

10. In reply, the applicants' counsel submitted that the presumption of innocence weighed in the applicants' favour, particularly for the second applicant, who it was argued bore no obligation to prove his *alibi*. It was submitted that the second applicant had informed the police of his *alibi* from the beginning and had indicated in his warned and cautioned statement that he was at work. He argued that the absence of supporting documents was due to the failure of the police to provide them for the bail application.

The Law on Bail

11. The starting point is section 50(1)(d) of the Constitution of Zimbabwe, 2013, which provides that any person who is arrested must be released unconditionally or on reasonable conditions, pending charge or trial, unless there are compelling reasons justifying continued detention. While liberty is a fundamental human right, bail may be denied where compelling reasons show that the accused's release would not be in the interests of justice. Accordingly, the court must balance the accused's right to liberty against the broader interests of the administration of justice.

12. The grounds for refusal of bail are listed in s 117(2) of the Criminal Procedure and Evidence Act [*Chapter 9:07*] (the CPEA), which states that:

"The refusal to grant bail and the detention of an accused in custody shall be in the interests of justice where one or more of the following grounds are established—

a) where there is a likelihood that the accused, if he or she were released on bail, will
    i. endanger the safety of the public or any particular person or will commit an offence referred to in the First Schedule; or
    ii. not stand his or her trial or appear to receive sentence; or
    iii. attempt to influence or intimidate witnesses or to conceal or destroy evidence; or
    iv. undermine or jeopardise the objectives or proper functioning of the criminal justice system, including the bail system; or
b) where in exceptional circumstances there is the likelihood that the release of the accused will disturb the public order or undermine public peace or security."

These grounds give substance to what may constitute "compelling reasons." As the courts have consistently emphasised, including in *Aitken & Another v Attorney-*

General 1992 (1) ZLR 249 (S), these grounds must be established on a factual basis and cannot rest on speculation.

13. In terms of s 115C (2) of the CPEA, for most offences, the prosecution must show that there are compelling reasons why an accused who has not been convicted should stay in custody. If the prosecution cannot show this, the accused should normally be released on bail. For serious offences listed in the Third Schedule, the burden shifts to the accused instead of the prosecution. The accused must prove, on a balance of probabilities (meaning "more likely than not"), that bail is justified. For offences falling under Part I of the Third Schedule, the accused must show that their release would be in the interests of justice. For offences under Part II of the Third Schedule, the accused must go further and establish that exceptional circumstances exist which make it fair and just to grant bail.

Applicants Denied Bail Due to Risk of Abscondment

14. After hearing submissions in this matter, I came to the conclusion that if the applicants were granted bail, they were likely to abscond trial. At law, in considering whether this ground has been established, the court takes into account the factors listed in s 117 (3)(b) of the CPEA which are –

> "(i) the ties of the accused to the place of trial;
> (ii) the existence and location of assets held by the accused;
> (iii) the accused's means of travel and his or her possession of or access to travel documents;
> (iv) the nature and gravity of the offence or the nature and gravity of the likely penalty therefor;
> (v) the strength of the case for the prosecution and the corresponding incentive of the accused to flee;
> (vi) the efficacy of the amount or nature of the bail and enforceability of any bail conditions;
> (vii) any other factor which in the opinion of the court should be taken into account."

15. Similarly in *Aitken & Another* v *Attorney-General supra* the Supreme Court articulated judicial principles that mirror and reinforce the above statutory provision. It held that:

> "In judging the risk that an accused person would abscond the court should be guided by the following factors:
> (i) The nature of the charge and the severity of the punishment likely to be imposed on the accused upon conviction;
> (ii) The apparent strength or weaknesses of the State case;

(iii) The accused's ability to reach another country and the absence of extradition facilities from the other countries;
(iv) The accused's previous behaviour
(v) The credibility of the accused's own assurance of his intention and motivation to remain and stand trial."

16. The *Aitken* case adds an explicit focus on the accused's ability to flee to another country and the absence of extradition facilities, the accused's previous behaviour, and the credibility of the accused's assurances to remain and stand trial, which factors are not expressly listed in section 117(3)(b) of the CPEA. These additional factors in the *Aitken* case are in harmony with section 117 (3)(b) because they fall under the catch-all provision in section 117(3)(b)(vii) which authorises the court to consider any other factor which in its opinion should be taken into account.

17. The practical application of the grounds enumerated in s 117(3)(b) and the *Aitken* case is as follows. First, the nature of the charge and severity of the potential sentence are critical, as a serious offence carrying a lengthy custodial term creates a strong incentive to flee. Second, the strength of the State's case is relevant: where the evidence appears compelling, the increased likelihood of conviction heightens the risk of abscondment. Third, the accused's capacity to leave the country and the availability of extradition mechanisms must be considered, since access to jurisdictions without extradition increases the danger of flight. Fourth, past conduct, including any history of absconding or breaching bail conditions, may reveal a propensity to evade justice. Finally, the credibility of the accused's assurances to remain and stand trial must be assessed. If the court doubts their genuineness, the risk of abscondment is reinforced. Taken together, these factors guide the court in determining whether bail can be granted without undermining the administration of justice.

18. In the present case, the charge of murder faced by the applicants is grave and carries the prospect of a lengthy custodial sentence upon conviction, potentially life imprisonment in aggravated circumstances. In *S v Jongwe* 2002 (2) ZLR 209 (S), the Supreme Court held that the seriousness of the offence, together with the likelihood of a lengthy sentence, significantly heightens the risk of abscondment and may constitute a compelling reason to refuse bail.

19. Similarly, the seriousness of the offence of murder, coupled with the strength of the State's case, materially increases the risk of abscondment. In *Aitken & Another* v *Attorney-General* 1992 (1) ZLR 249 (S), the court stated that a serious charge, when supported by a strong *prima facie* case, creates a powerful incentive for an accused to evade trial. In *casu*, the State presented strong evidence linking the applicants to the offence, particularly through positive identification by eyewitnesses. The reliability of these identifications was reinforced by the fact that the incident occurred within a mining community where the applicants were well known as artisanal miners belonging to a rival group of the deceased. The offence was committed in broad daylight under clear and unobstructed visibility, making mistaken identity highly improbable. The applicants' claim that they were victims of mistaken identity was therefore unpersuasive. The second applicant's assertion that he was in Kwekwe at the relevant time was equally unconvincing, as he offered no plausible explanation for how members of the Mazowe community could have positively identified him if he was neither present nor known in that area. The fact that he was allegedly identified by name strongly suggests familiarity and presence at the scene rather than absence.

20. In view of the strong *prima facie* case against the applicants, the court considered that, if convicted, they would face a lengthy custodial sentence. This prospect provided a further substantial incentive for them to abscond. As held in *Sekai Simango v The State* HMT 29/21 at page 3, strong evidence combined with the prospect of a severe sentence creates a significant risk of flight and constitutes a compelling reason to deny bail.

21. In addition to facing a serious charge, a strong *prima facie* case, and the prospect of a lengthy custodial sentence, factors which on their own justify the refusal of bail, the applicants relocated to Gwanda, approximately 670 kilometres from the scene of the alleged offence, shortly after its commission. Gwanda is also some 500 kilometres from their home area of Gokwe, and the first applicant moved there with his family. Such conduct was *prima facie* consistent with an attempt to evade arrest and strongly supported the conclusion that the applicants posed a flight risk. Their explanations for the relocation were unconvincing when weighed against the seriousness of the charge and the strength of the State's case.

22. Taken cumulatively, the gravity of the offence, the severity of the potential sentence, the strength of the evidence, and their relocation soon after the alleged crime pointed to a real and substantial risk of abscondment. The applicants failed to prove on a balance of probabilities that bail should be granted because the evidence weighed heavily against them and their explanations were not credible. The applicants' claim of misidentification was unpersuasive. The second applicant's *alibi* was unsupported by reliable documentation or plausible explanation. The court was satisfied that the applicants' release on bail would undermine the administration of justice.

Disposition

23. It is in light of the foregoing that the application for bail pending trial was dismissed.

MUREMBA J:……

Bukhosi Ncube Attorneys, applicants' legal practitioners
National Prosecuting Authority, respondent's legal practitioners